Victoria Falls – Hwange (Declaration of Joint Committee) (Jafuta Estate) Notice, 2021

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THE Minister of Local Government and Public Works, in terms of section 83 of the Rural District Councils Act [*Chapter 29:13*] and in terms of section 224(5) of the Urban Councils Act [*Chapter 29:15*], hereby makes the following notice:—

Title

1. This notice may be cited as the Victoria Falls – Hwange (Declaration of Joint Committee) (Jafuta Estate) Notice, 2021.

Areas of joint interest

2. The area to be jointly managed is Jafuta Estate situate in the district of Wankie in between the area administered by Victoria Falls Municipality and that is administered by Hwange Rural District Council, measuring 1 400h in extent, as appears on the diagram SG 70/2013.

Interpretation

3. In this notice —

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"business day" means any day other than Saturday or Sunday or public holiday in Zimbabwe;

"joint committee" means the committee made up of the members as appointed from time to time in terms of section 224 of the Urban Councils Act [*Chapter 29:15*] and section 83 of the Rural District Councils Act [*Chapter 29:13*].

Establishment of committee

4. (1) There is hereby established a committee to be known as the Victoria Falls – Hwange Joint Committee.

(2) The committee shall be a body corporate, capable of suing and being sued in its corporate name.

Objectives of the committee

5. The objective of the committee shall be the development of the Jafuta Estate commonly known as Masue into a world class tourism hub and an upmarket urban area.

Appointment of committee members

6. Each party will appoint or second three (3) members from its councillors or members to the joint committee as provided for in the Urban Councils Act [*Chapter 29:15*] and or Rural District Councils Act [*Chapter 29:13*]:

Provided that the rural district council may appoint additional institutional members in terms of section 83 of the Rural District Councils Act [*Chapter 29:13*] as follows—

(a) a representative of Mosi oa Tunya Development Company (Private) Limited; and

(b) a representative of Zimbabwe Tourism Authority; and

(c) a representative of Zimbabwe Parks and Wildlife Management Authority; and

(d) a representative of Zimbabwe Police Service; and

(e) legal counsel, a person registered in terms of the Legal Practitioners Act [*Chapter 27:07*].

Tenure of office of the committee

7. (1) The committee shall hold office during their office tenure periods as provided in section 226 of the Urban Councils Act [*Chapter 29:15*] and section 85 of the Rural District Councils Act [*Chapter 29:13*].

(2) The committee shall elect the Chairperson at their first meeting who shall hold office for twelve (12) months—and the office of the Chairperson shall be alternated between the two (2) parties. The Chairperson shall have a casting vote should there be a tie amongst the joint committee.

Functions and powers of the committee

8. The committee shall have similar competences as provided in the Second Schedule and Third Schedule of the Urban Council Act [*Chapter 29:15*] and any other that councils can lawfully execute.

Expenses

9. The parties shall share the expenses equally between themselves and in terms of section 224(4) of the Urban Councils Act.

Termination

10. Termination of the committee shall be by incorporation of the area into Victoria Falls Municipality or Hwange Rural District Council as the case may be.